

poses be considered the printed cases of the appellant and respondent respectively.—Provided always, that nothing herein contained shall prevent the parties from joining in printing such copies as they now do in printing the Appendix if they shall be so disposed. Such printed cases must be deposited with the Clerk of the Court for the use of the Judges, at least four days before the hearing of the appeal.

XXXI.
Appeals to the
Privy Council.

Security for
costs.

That, when it shall be intended to appeal to Her Majesty in the Privy Council, the securities required by the Statute twelfth Victoria, Chapter sixty-three, Section forty-six, shall be personal and by Bond to the Respondent or Respondents, such Bond to be executed by the Appellant or Appellants, or one of them, and two sufficient sureties (or if the Appellant or Appellants be absent from or do not reside in Upper Canada, then by three sufficient sureties) in the penal sum of Five hundred Pounds in Cases coming within the first part of the said Section forty-six, the condition of which Bond shall be to the effect that the Appellant (or Appellants) shall and will effectually prosecute his (or their) appeal and pay such costs and damages as shall be awarded in case the judgment (or Decree) appealed from shall be affirmed or in part affirmed, and that execution shall not be stayed in the original cause until security shall further be given by Bond, in conformity to the sixth, seventh and eighth Rules, when from the nature of the case such further security shall be requisite: And in cases from Chancery, application to the Court of Appeal to stay proceedings shall be by motion or notice, which motion, if granted, shall be upon such terms as to security under the Statute or otherwise as the circumstances and nature of the case require.

[The 6th, 7th, and 8th Rules above cited, refer to the Common Law Courts.]

XXXII. That the Bond or security referred to in the last Rule Form of Bond, shall be in the following form:

Know all men by these presents that We, A. B., of
C. D., of
and E. F., of
severally held and firmly bound unto G. H., of
in the penal sum of
of lawful money of Canada, for which payment well and
truly so be made, we bind ourselves and each of us by
himself, our and each of our heirs, executors and adminis-
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